Traditio · Anthony Mercer

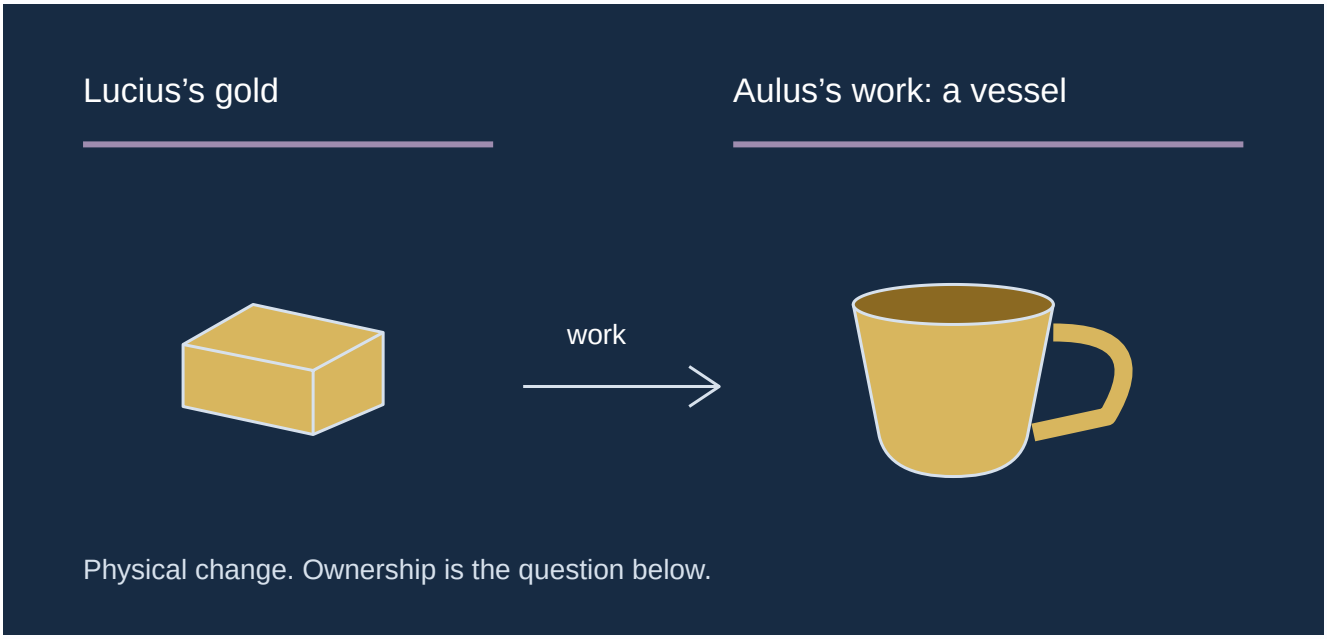
Someone else’s gold. Your work.

A craft dispute notebook from Gaius, Institutes 2.77–79.

Captured when Save was pressed. Proposals are kept as written. Source comparisons are recomputed from case facts; prose and citation choices are not graded. This reading embeds its pages, fonts, sources and licenses; it needs no scripts or network. Print to save a PDF.

Current work: Gold into a vessel

Lucius owns all the gold. Aulus makes a vessel from it on his own account. There is no agreed transfer of the gold and no contract to make it for Lucius.

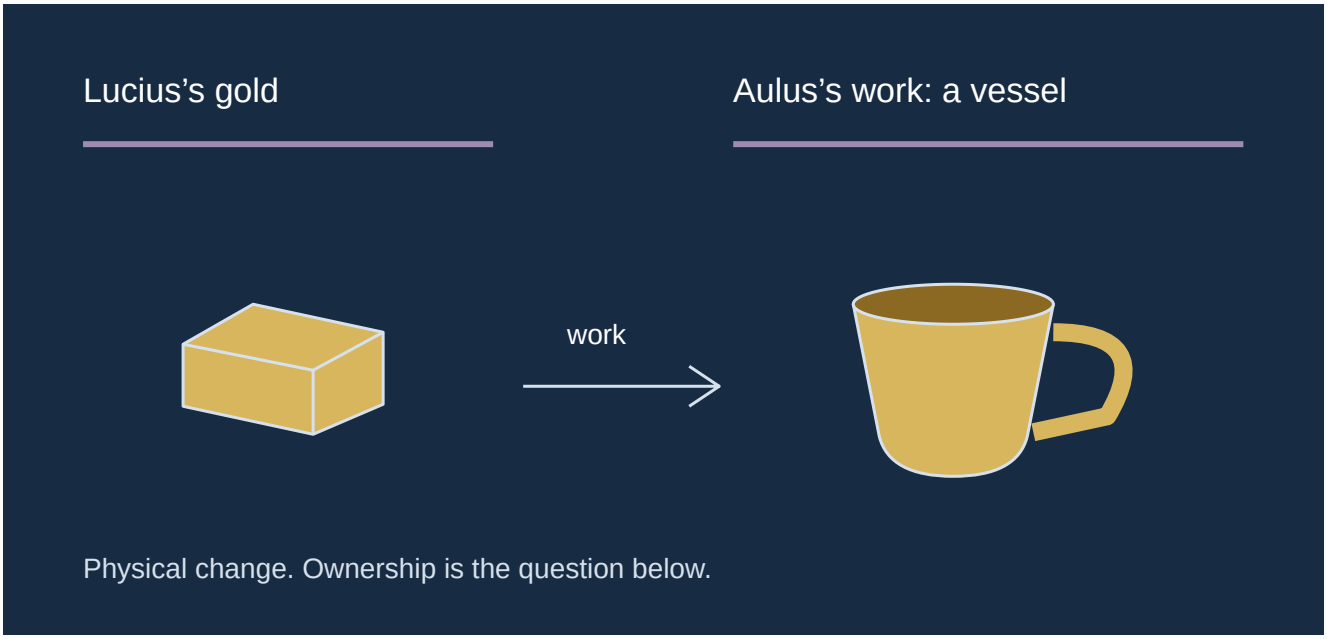


2.79 expressly includes a vessel made from another’s gold or silver. Sabinus and Cassius favor the material owner; the opposing school favors the maker. These are competing answers about the same object.

Your kept judgments

2 kept. The judgments below are fixed records, separate from later drafts.

Judgment 1: Gold into a vessel



Your kept proposal: Lucius owns it

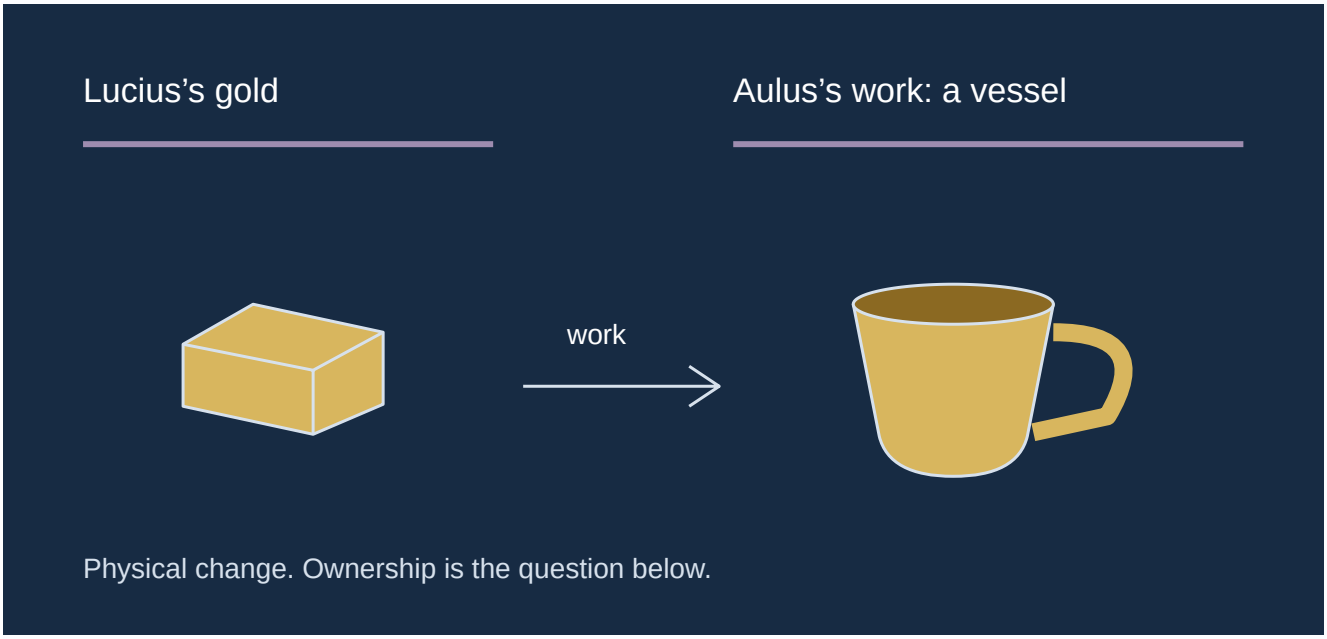
The gold belonged to Lucius before the work; I would let its ownership continue.

Cited readings: 2.79 · rival answers.

Comparison with the selected source: Your answer matches Sabinus and Cassius, but leaves out the rival answer. This source does not settle on a single owner.

2.79 expressly includes a vessel made from another’s gold or silver. Sabinus and Cassius favor the material owner; the opposing school favors the maker. These are competing answers about the same object.

Judgment 2: Gold into a vessel



Your kept proposal: The source reports rival answers

The source gives two answers; a matching school is not a settled rule.

Cited readings: 2.79 · rival answers.

Comparison with the selected source: You kept the disagreement. The text reports two competing answers, rather than one owner with two shares.

2.79 expressly includes a vessel made from another’s gold or silver. Sabinus and Cassius favor the material owner; the opposing school favors the maker. These are competing answers about the same object.

The title and the recovery claim

This is a separate experiment with Gaius 2.77–78, retained alongside the ownership proposals. The selected work is painting on Lucius's board. Aulus did the work. The claimant is the person seeking the physical object from the holder.

One physical object. Distinct positions.

Physical holder	Aulus
Reported owner	Aulus
Person seeking recovery	Lucius
Claim in this passage	Adapted claim · actio utilis
Defense on this ground	Not decided by this qualification

The adapted claim is stated. This qualification does not decide the defense here.

Utique si supplies the good-faith possessor's defense. Turning that condition off does not turn the text into an express denial for every bad-faith case. The workshop leaves that converse unresolved instead of inventing a litigation result.

Current stipulated recovery facts

Work	Painting on a board
Physical holder	Aulus
Reported owner	Aulus
Person seeking recovery	Lucius
Reported claim	Adapted claim · actio utilis
Relevant expense	The expense of painting
Expense paid	No
Painter's possession stipulated in good faith	No
Defense on this ground	Not decided by this qualification

Read the supporting Latin and its qualification.

Pinned comparison

Pinned recovery point compared with current facts

Fact or legal position	Pinned point	Current point
Work	Painting on a board	Painting on a board
Physical holder	Aulus	Aulus
Reported owner	Aulus	Aulus
Person seeking recovery	Lucius	Lucius
Reported claim	Adapted claim · actio utilis	Adapted claim · actio utilis
Relevant expense	The expense of painting	The expense of painting
Expense paid	No	No
Painter's possession stipulated in good faith	Yes	No
Defense on this ground	Stated defense available	Not decided by this qualification

Changing custody or paying an expense does not change the ownership rule in this model. A stated defense, the removal of its stated nonpayment ground and the result of litigation are separate questions. Utique si supplies the good-faith case; the converse for bad faith is not asserted.

Your unkept drafts

These drafts have not been submitted as judgments.

Gold into a vessel: The source reports rival answers

The source gives two answers; a matching school is not a settled rule.

Citations: schools.

Your account of the case

A compatible side of a dispute does not prove an always claim.

Selected proposed general rule: Aulus · maker always owns the result.

Testing the material owner rule

Proposed rule: the material owner always owns the result

Case	Your rule predicts	Test against these passages
Gold into a vessel	Lucius · material owner	**One reported view** Compatible with one side of the dispute; no settled result here verifies the general rule.
Grapes into wine	Lucius · material owner	**One reported view** Compatible with one side of the dispute; no settled result here verifies the general rule.
Boards into a chest	Lucius · material owner	**One reported view** Compatible with one side of the dispute; no settled result here verifies the general rule.
Writing on parchment	Lucius · material owner	**Agrees here** One agreeing example cannot establish an always claim.
Painting on a board	Lucius · material owner	**Counterexample** The reported rule gives the object to Aulus · maker, rather than the owner your rule predicts.
Repairing a cracked vessel	Lucius · material owner	**Outside these passages** An analogy requires an additional legal classification.

Testing the maker rule

Proposed rule: the maker always owns the result

Case	Your rule predicts	Test against these passages
Gold into a vessel	Aulus · maker	**One reported view** Compatible with one side of the dispute; no settled result here verifies the general rule.
Grapes into wine	Aulus · maker	**One reported view** Compatible with one side of the dispute; no settled result here verifies the general rule.
Boards into a chest	Aulus · maker	**One reported view** Compatible with one side of the dispute; no settled result here verifies the general rule.
Writing on parchment	Aulus · maker	**Counterexample** The reported rule gives the object to Lucius · material owner, rather than the owner your rule predicts.
Painting on a board	Aulus · maker	**Agrees here** One agreeing example cannot establish an always claim.
Repairing a cracked vessel	Aulus · maker	**Outside these passages** An analogy requires an additional legal classification.

Scope and assumptions

These invented cases isolate the tangible object. Lucius owns the entire input or support; Aulus does the work on his own account. No agreed transfer, manufacture contract, mixed ownership, buyer, succession or usucapion is modeled. An ownership answer does not decide physical possession, recovery or the amount payable.

The two positions in 2.79 are competing legal answers applied to the same facts. They are not joint shares, two successive title holders, or two results for different amounts of labor. The writing and painting rules are reported separately in 2.77–78; the workshop does not assert that both schools expressly assented to them.

No gold price, hours of work, market value or test of reversibility selects a winner in these chosen Institutes paragraphs. Later texts and compromises are outside this room. Repair is an expressly undecided analogy, not a claim that Roman law had no answer.

The source is Gaius’s second-century Institutes as edited in 1904, not an ancient manuscript photograph. Angle brackets retain supplied words; […] marks omitted clauses. Consonantal u is printed v, line breaks are joined, and sentence-initial capitals are normalized. English and phrase notes are new and have not had independent philological review. The drawings are modern explanatory diagrams, not recovered artifacts or legal advice.

Gaius · Institutes 2.77 · ownership

The letters follow the parchment

Eadem ratione probatum est quod in chartulis sive membranis meis aliquis scripserit, licet aureis litteris, meum esse, quia litterae chartulis sive membranis cedunt.

Close English translation

By the same reasoning, it has been accepted that what someone has written on my paper or parchment belongs to me, even in gold letters, because the letters follow the paper or parchment.

Opening sentence of 2.77. The antecedent of ‘the same reasoning’ lies in the preceding accession discussion. This is ownership of the tangible object; no modern intellectual-property rule is asserted.

licet aureis litteris
even in gold letters. The expense or preciousness of the lettering does not reverse the reported rule.

litterae … cedunt
the letters follow …. Litterae is the subject. The paper or parchment is what they legally follow.

meum esse
to be mine. The owner of the paper speaks as ‘I’ in the source; Lucius fills that role in the invented case.

Complete printed page: 162.

Gaius · Institutes 2.77 · recovery

Title does not remove the expense question

Itaque si ego eos libros easve membranas petam nec inpensam scripturae solvam, per exceptionem doli mali summoveri potero.

Close English translation

Accordingly, if I claim those books or parchments and do not pay the expense of writing, I can be defeated by a defense of fraud.

Remainder of 2.77. The ownership sentence and this qualification coexist. The app does not compute compensation, conduct litigation or model a modern lien.

nec inpensam … solvam
and do not pay the expense …. The refusal or omission to pay qualifies the attempt to recover.

per exceptionem doli mali
by a defense of fraud. An exceptio is a procedural defense; it is not a second ownership share.

Complete printed page: 162.

Gaius · Institutes 2.78 · ownership

The direction reverses

Sed si in tabula mea aliquis pinxerit veluti imaginem, contra probatur; magis enim dicitur tabulam picturae cedere. Cuius diversitatis vix idonea ratio redditur; [...]

Close English translation

But if someone paints on my board, for example an image, the opposite is accepted: the board is rather said to follow the painting. Scarcely an adequate reason is given for this difference; […]

Opening of 2.78; the continuation concerns recovery and expense. Tabula is a board or panel, although the historical English alongside says ‘canvas’. The source criticizes the unexplained distinction; the workshop does not repair it with a theory of artistic value.

contra probatur
the opposite is accepted. The immediately preceding writing case supplies the contrast.

tabulam picturae cedere
the board to follow the painting. Tabulam is the subject of the infinitive; picturae identifies what it follows. Reversing them reverses the legal result.

vix idonea ratio
scarcely an adequate reason. This is the source’s reservation, not a modern certainty about why the rule exists.

Complete printed page: 162.

Gaius · Institutes 2.78 · recovery and theft

Holding, owning and recovering differ

[...] certe secundum hanc regulam si me possidente petas imaginem tuam esse, nec solvas pretium tabulae, poteris per exceptionem doli mali summoveri; at si tu possideas, consequens est, ut utilis mihi actio adversum te dari debeat; quo casu nisi solvam inpensam picturae, poteris me per exceptionem doli mali repellere, utique si bonae fidei possessor fueris. Illud palam est, quod sive tu subripueris tabulam sive alius, conpetit mihi furti actio.

Close English translation

[…] At any rate, under this rule, if while I possess it you claim the image as yours and do not pay the value of the board, you can be defeated by a defense of fraud. But if you possess it, it follows that an adapted action should be given to me against you. In that case, unless I pay the painting expense, you can repel me by a defense of fraud, at least if you have been a possessor in good faith. This is clear: whether you or another stole the board, an action for theft is available to me.

Remainder of 2.78 after the ownership discussion, retaining both custody branches and the final theft sentence. Me and mihi refer to the board owner; tu and te to the painter. Actio utilis is rendered adapted action, without importing a modern equity jurisdiction. Utique si expressly supplies the good-faith possessor's case; this lesson does not infer a complete converse for bad faith. Payment removes the stated nonpayment ground, not every possible issue in litigation.

me possidente
while I possess it. The board owner can hold the physical painting while claiming a procedural defense.

secundum hanc regulam
under this rule. Keeps the stated ownership rule distinct from the means of recovery.

sive tu … sive alius
whether you … or another. The theft clause distinguishes the thief from the possible maker.

utilis mihi actio
an adapted action for me. The board owner receives a described claim even though the ownership rule favors the painter.

nisi solvam inpensam picturae
unless I pay the painting expense. This branch concerns the board owner paying painting expenses; the earlier branch concerns the painter paying for the board.

utique si bonae fidei possessor fueris
at least if you have been a possessor in good faith. The positive qualification is explicit. Removing it does not create an express denial for every bad-faith case.

Complete printed page: 162.

Gaius · Institutes 2.79 · examples

Mine, or yours?

In aliis quoque speciebus naturalis ratio requiritur. Proinde si ex uvis ⟨aut olivis aut spicis⟩ meis vinum aut oleum aut frumentum feceris, quaeritur utrum meum sit id vinum aut oleum aut frumentum, an tuum. Item si ex auro aut argento meo vas aliquod feceris, vel ex tabulis meis navem aut armarium aut subsellium fabricaveris; […]

Close English translation

In other cases too, natural reasoning is called for. Thus, if from my grapes ⟨or olives or ears of grain⟩ you make wine or oil or grain, the question is whether that wine, oil or grain is mine or yours. Likewise, if from my gold or silver you make a vessel, or from my boards construct a ship, cupboard or bench; […]

Opening examples of 2.79 on p. 162; the question and rival answers continue onto p. 163. The angle brackets preserve this edition's supplied words. The excerpt omits clothing, honeyed wine and medicinal preparations. The workshop's cases are selected examples, not the paragraph's complete list.

ex … meis
from my …. Identifies the pre-existing material's owner, not an agreed sale to the maker.

utrum meum … an tuum
whether mine … or yours. Poses rival ownership outcomes; it does not divide the object between them.

armarium
cupboard or chest. The source gives a kind of constructed object, not dimensions or a surviving specimen.

Complete printed pages: 162, 163.

Gaius · Institutes 2.79 · rival answers

Some think. Others think.

[…] quidam materiam et substantiam spectandam esse putant, id est ut cuius materia sit, illius et res quae facta sit videatur esse, idque maxime placuit Sabino et Cassio. Alii vero eius rem esse putant qui fecerit, idque maxime diversae scholae auctoribus visum est; […]

Close English translation

[…] Some think the material and substance should be considered: that is, the thing made should be regarded as belonging to the person whose material it is. This view especially pleased Sabinus and Cassius. Others, however, think the thing belongs to the person who made it; that view especially commended itself to the authorities of the opposing school; […]

Selected central clauses of 2.79. Gaius names Sabinus and Cassius here, but calls their rivals the authorities of the opposing school without naming individual jurists in this paragraph. The app retains that wording. It infers neither a Stoic/Aristotelian alignment nor a later compromise from these clauses.

quidam … alii vero
some … others, however. Reports disagreement; ‘others’ does not describe a later step in one ownership history.

cuius … illius
whose … that person’s. Links ownership of the input material with ownership of the result in the first answer.

qui fecerit
the person who made it. The maker becomes the criterion in the rival answer.

diversae scholae
of the opposing school. A school of jurists in this passage. The phrase does not identify a philosophical allegiance.

Complete printed page: 163.

Gaius · Institutes 2.79 · surviving remedies

A maker’s title is not permission to steal

[…] sed eum quoque cuius materia et substantia fuerit furti adversus eum qui subripuerit habere actionem; nec minus adversus eundem condictionem ei conpetere, quia extinctae res, licet vindicari non possint, condici tamen furibus et quibusdam aliis possessoribus possunt.

Close English translation

[…] But the person whose material and substance it was also has an action for theft against the person who stole it, and a condictio is likewise available against that same person: although things that have ceased to exist cannot be vindicated, a condictio concerning them can nevertheless be brought against thieves and certain other possessors.

Conclusion of 2.79. The theft remedy targets the thief, who need not be the maker. The workshop can stipulate that the maker stole the material; it does not infer theft from manufacture alone, compute an award, or treat the source’s remedies as modern criminal penalties.

adversus eum qui subripuerit
against the person who stole it. The relevant target is identified by theft, not by the mere act of making.

licet … tamen
although … nevertheless. Loss of one kind of claim does not imply loss of every claim.

vindicari … condici
be vindicated … be claimed by condictio. Different forms of claim: the passage expressly separates them.

Complete printed page: 163.

§ 77. Eadem ratione probatum est quod in chartulis siue membranis meis aliquis scripserit, licet aureis litteris, meum esse, quia litterae chartulis siue membranis cedunt. itaque si ego eos libros easue membranas petam nec inpensam scripturae soluam, per exceptionem doli mali summoueri potero. Inst. 2, 1, 33.

§ 78. Sed si in tabula mea aliquis pinxerit ueluti imaginem, contra probatur; magis enim dicitur tabulam picturae cedere. cuius diuersitatis uix idonea ratio redditur; certe secundum hanc regulam si me possidente petas imaginem tuam esse, nec soluas pretium tabulae, poteris per exceptionem doli mali summoueri; at si tu possideas, consequens est, ut utilis mihi actio aduersum te dari debeat; quo casu nisi soluam inpensam picturae, poteris me per exceptionem doli mali repellere, utique si bonae fidei possessor fueris. illud palam est, quod siue tu subripueris tabulam siue alius, conpetit mihi furti actio. Inst. 2, 1, 34.

§ 79. In aliis quoque speciebus naturalis ratio requiritur. proinde si ex uuis ⟨*aut oliuis aut spicis*⟩ meis uinum aut oleum aut frumentum feceris, quaeritur utrum meum sit id uinum aut oleum aut frumentum, an tuum. item si ex auro aut argento meo uas aliquod feceris, uel ex tabulis meis nauem aut armarium aut subsellium fabricaueris; item si ex lana mea uestimentum feceris, uel si ex uino et melle meo mulsum feceris, siue ex medi-

§ 77. On the same principle, the writing inscribed on my paper or parchment, even in letters of gold, becomes mine, for the property in the letters is accessory to the paper or parchment; but if I sue for the books or parchment without offering compensation for the writing, my action will be defeated by the plea of fraud.

§ 78. The canvas belonging to me, on which another man has painted, e. g. a portrait, is subject to a different rule, for the ownership of the canvas is held to be accessory to the painting: a difference which scarcely rests on a sufficient reason. By this rule, it is clear that if I am in possession, and you (the painter) claim the portrait without offering to pay the value of the canvas, I may defeat your claim by the plea of fraud. But if you are in possession, the effect is that I am entitled to an equitable action against you, but in this case unless I offer the price of the painting, you defeat me by the plea of fraud, at any rate if you are a bona fide possessor. It is certain, that, if either you or another purloined the canvas, I can bring an action of theft.

§ 79. On a change of species, also, we have recourse to natural law to determine the proprietor. Thus, if grapes, or olives, or sheaves of corn, belonging to me, are converted by another into wine, or oil, or (threshed out) corn, a question arises whether the property in the corn, wine, or oil, is in me, or in the author of the conversion; so too if my gold or silver is manufactured into a vessel, or a ship, chest, or chair is constructed from my timber, or my wool is made into clothing, or my wine and honey

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camentis meis emplastrum uel collyrium feceris, ⟨*quaeritur, utrum tuum sit id quod ex meo effeceris,*⟩ an meum. quidam materiam et substantiam spectandam esse putant, id est ut cuius materia sit, illius et res quae facta sit uideatur esse, idque maxime placuit Sabino et Cassio. alii uero *eius rem* esse putant qui fecerit, idque maxime diuersae scholae auctoribus uisum est; sed eum quoque cuius materia et substantia fu*e*rit furti aduersus eum qui subripuerit habere actionem; nec minus aduersus eundem condictionem ei conpetere, quia extinctae res, licet uindicari non possint, condici tamen furibus et quibusdam aliis possessoribus possunt.

Inst. 2, 1, 25.

are made into mead, or my drugs into a plaster or eye-salve, it becomes a question whether the ownership of the new product is vested in me or in the manufacturer. According to some, the material or substance is the criterion; that is to say, the owner of the material is to be deemed the owner of the product; and this was the doctrine which commended itself to Sabinus and Cassius; according to others the ownership of the product is in the manufacturer, and this was the doctrine favoured by the opposite school; who further held that the owner of the substance or material could maintain an action of theft against the purloiner, and also an action for damages (condictio), because, though the property which is destroyed cannot be vindicated, this is no bar to a condictio or personal action for damages against the thief and against certain other possessors.

QVIBVS ALIENARE LICEAT VEL NON.

§ 62. Accidit aliquando, ut qui dominus sit alienandae rei potestatem non habeat, et qui dominus non sit *ali*enare possit. Inst. 2, 8 pr.

§ 62. It sometimes occurs that an owner has not a power of alienation, and that a person who is not owner has a power of alienation.

§ 63. Nam dotale praedium maritus inuita muli*e*re per legem Iuliam prohibetur alienare, quamuis ipsius *sit* uel mancipatum ei dotis causa uel in iure cessum uel usucaptum. quod quidem ius utrum ad Italica tantum prae*d*ia an etiam ad prouincialia pertineat, dubitatur. Inst. l. c.

§ 63. The alienation of dower land by the husband, without the consent of the wife, is prohibited by the lex Julia, although the husband has become owner of the land by its mancipation to him as dower, or by its surrender to him before a magistrate, or by his usucapion of it. Whether this disability is confined to Italian soil, or extends to the provinces, authorities differ.

§ 64. Ex diuerso agnatus furiosi curator rem furio|si alienare potest ex lege XII tabularum; item procurator—|——

§ 64. Contrariwise, an agnate, as a lunatic's curator, is empowered to aliene the lunatic's property by the law of the Twelve Tables;

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Editable notebook in plain text


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    "source": "fonts/provenance.json"
  }
]
```


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Retained complete printed pages: 74, 75, 133, 134, 135, 146, 147, 148, 149,
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Independent comparison transcription:
https://droitromain.univ-grenoble-alpes.fr/Anglica/gai2_Poste.htm
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Digest of Justinian, 41.1.7.1, .2, .6, and opening of .13, attributed by the
compilation to Gaius, book two of Res cottidianae sive aurea. The Digest
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Latin page evidence: Corpus Iuris Civilis, volume I, Editio stereotypa sexta,
Institutiones recognovit Paulus Krueger; Digesta recognovit Theodorus Mommsen.
Berlin: Weidmann, 1893 (MDCCCXCIII on the scanned title page; the Archive
catalogue field says 1892). Complete printed pages 644-645.
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Scope: selected clauses of Institutes 2.77-79. No later Digest or Justinian
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The lower part of page 163 begins an earlier-numbered section in this edition;
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The schools in 2.79 offer rival answers, not shared ownership. Gaius names
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Theft is an added premise in the remedy example; making does not prove theft.
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